VAN LAW FIRM PERSONAL INJURY WORKFLOW

Prospective client contacts firm and is enrolled in the Leads Project Filevine

Prospective client (lead) is reviewed by the firm for approval

Lead is NOT a good client candidate?

Prospective client (lead) is not taken into the firm

Case is referred to another firm or attorney

Lead is a good client candidate?

Prospective client (lead) is approved and taken into the firm

Intake procedures commence

In person intake

Phone intake

Sending of the Intake Packet and other documents to the client for signing

Creation of the client's Filevine project

VA Intake Team will complete Intake Tab, Insurance Tab, Property Damage Tab, and other necessary tabs with client and accident information

Conflict Check, if no conflict proceed

There is conflict with 1P or 3P

BODILY INJURY

There is a minor involved in the case

Start **Minor's Compromise** procedures

*Did client went to **Hospital, Emergency Doctor, Ambulance, Radiology? (Hospital only)***

If yes, obtain hospital related records and bills

Client must have health insurance and be willing to use his health insurance

Open health insurance subrogation lien (Optional if no)

Submit Subro LOR with HIPAA to the subrogation department

Health insurance may process subro claim in 30 days

Call subro department to confirm if they have received LOR, if not, resend.

Health insurance company will send Notice of Lien

After 2 weeks, call in and request for Subrogation Lien

Review the Subrogation Lien if there are missing bills. If there are, submit letter to bill health insurance

Once all bills are complete, call subro department and request for updated subrogation lien

Once all bills are complete, call subro department and request for updated subrogation lien

If client is done treating and demand letter is sent, request **Final Subrogation Lien**.

Client will start treatment (chiro, PT, general physician, or pain mgt.

Telephone call to the client within the first 3 days to confirm treatment and to request missing documents

Still treating - check in with the client once every 3-4 weeks

MRI at 6 to 8 weeks if client is not feeling better

Case Manager tasks to request bills and records

*Client is **done treating***

*If medical expenses reach 40 to 60% of policy limits, **send the demand letter***

Team police will order Police Report (NV: 8-10 days / WA 3+ days)

Read the police report and see if our client is fault free
Do e have the body worn camera footage, photos and/or statements?

Conduct background check (ISO) to verify if 3P and 1P have insurance

Senior caller will call 3P insurance company to Open 3P Claims (BI)

Senior caller will draft and send LOR to 3P insurance

3P insurance is expected to send Ack of LOR and 3P Dec Page (within 30 days)

If no response, follow up every 3 - 5 days

Obtain liability acceptance, follow up every 5 days on status of liability

If medical bills exceed the POLICY LIMIT OF 3P

Open 1P UM/UIM or MedPay per CM

Follow up on claim

Obtain final UM/UIM MedPay offer

Close to 30 days and 3P still does not confirm liability status

Send Letter to 3P Whether Liability is Accepted (Driver)

*3P insurance accepted **full liability***

If confirmation was done via phone, send Letter to 3P Confirming Liability

*3P insurance accepted partial **liability***

If confirmation was done via phone, send Letter to 3P Confirming Partial Liability

If client and attorney does not approve of partial liability status, send the Letter to 3P Reconsidering Partial Liability.

In the case of partial liability acceptance, for example only accepting 70% of the liability, overshoot the policy

If firm does not agree with partial liability and 3P insurance still does not reconsider

*3P insurance **denied** liability of claims*

Send Letter to 3P Denial of Liability

If 3P insurance still denies liability, proceed to Litigation Phase

If 3P stalls or withholds 3P policy limit information, we pull PI, with third party investigators

Pull 3P policy limits using ML Research Group

We receive Insurance documents (rename and save to client's FV)

Request for medical bills and records

We receive Medical documents (rename and save to client's FV)

Litigate settlement claim

Send the Demand Letter to 3P Insurance
(they have 20 days to respond and 30 days to conduct investigation from date of receipt of demand letter)

Send the Demand Letter to 1P Insurance (MedPay / UM-UIM / PIP)
(they have 20 days to respond and 30 days to conduct investigation from date of receipt of demand letter)

If client is still treating

Senior caller will follow up every 3, 5, 10, 15, 20 days on status of demand and ask for settlement offer

Send Supplement Demand (additional records, bills, other documents)

3P insurance will send settlement offer

Negotiate 3P settlement offer

Settlement offer is denied

Send written counter offer to 3P ins

Send last chance letter

Settlement offer is accepted

If 3P insurance still does not cooperate and give us the due settlement offer

Client is not cooperating with attorney or not attending treatments

Client wants to drop representation from the firm

Drop the case

Decide whether or not to lien the case

Transfer Case to outside attorney

Settlement Disbursement Phase

Verify any remaining lien/medical balances

If client is still treating, request for final lien balance and any medical bills and

Preliminary disbursement sheet

Obtain final subrogation lien

Obtain final loan payoff

Calculate total expenses

Request for reductions from medical providers

Medical providers may offer counter reductions

Pay parties involved in settlement

Reconcile IOLTA Account

Close/Archive the case

PROPERTY DAMAGE

If client decides to pursue PD, open PD claims with 3P or 1P

Senior caller will call 3P or 1P insurance company to open PD claims

Car is not drivable (total loss)
Make sure that car is not in tow yard

Call 3P adjuster and schedule for an inspection

Inspector will make a fair market value (FMV) offer or the Total Loss offer

We negotiate offer until we are satisfied with 3P offer (high offer always)

Send documents to the adjuster

Client was not able to use car but 3P provided car rental at a later date

Open Loss of Use (LOU) claim with 3P insurance from DOL up to day rental car was provided by 3P.

Get LOU check from 3P insurance

Car is drivable (repairable)
Make sure that car is not in tow yard

Call 3P adjuster and schedule for an inspection

Inspector will make an offer based on damages

If offer is low, we get another damage estimate from a repair / body shop

Have the car repaired and follow up repair status

Client wants to have car rental ASAP and has 1P rental coverage?

Open rental coverage with 1P insurance

Open Rental Reimbursement claim with 3P and/or 1P insurance

Get rental reimbursement check from insurance company

Client wants to have car rental ASAP and has no 1P rental coverage?

Client must shoulder rental fees or wait for 3P to accept liability and provide rental

Client was not able to use car and did not have car rental?

Open Loss of Use (LOU) claim with 3P insurance from DOL up to repair was done

Get LOU check from 3P insurance

Client was not able to use car but provided with rental car at a later date

Open Loss of Use (LOU) claim with 3P insurance from DOL up to day rental car was provided by 3P

Get LOU check from 3P insurance

Follow up claims and repair status

Complete car repair process

Get the PD check

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